JOSEPH HONDO
versus
CITY OF HARARE

HIGH COURT OF ZIMBABWE
TAKUVA J
HARARE, 6 March 2025 & 17 June 2026

Civil Trial

K E Kadzere, for the plaintiff
C Kwaramba, for the defendant

TAKUVA J:

Plaintiff issued summons against defendant claiming for;

"i) Payment of US$10 720.00 being damages for pains and suffering and *contumelia* suffered by the plaintiff as a result of the assault perpetrated on his (sic) by the defendant's employees who were acting within the course and scope of their employment with the defendant.

ii) Payment of interest on the claimed amount at the prescribed rate of interest from the date of issues of summons to the date of full and final payment.

(iii) Costs of suit on a legal practitioner and client scale."

BACKGROUND FACTS

Plaintiff is a hawker who usually plies his trade at or near KARIGAMOMBE Centre, Harare. On 3 October 2018, plaintiff alleged that whilst at his workplace, he was unlawfully and wrongfully assaulted by Municipal Policemen whose identities are unknown to him. Three council policemen restrained him while one of them used a baton stick to beat the plaintiff on the buttocks, back, hands and torso. Further, he claimed to have been tortured with an electric device used to apply electric current, akin to a taser on his body. They later threw him into their truck and continued to beat him with booted feet, clenched fists and button sticks.

The assault allegedly took place in public and caused plaintiff to suffer great humiliation. Plaintiff also suffered the following;

1. "Physical bodily injury
   a. Mild swelling on the left side of the face.
   b. Tenderness and swelling on both sides of the head.
   c. Tenderness and swelling on the left shoulder.
   d. Postula rash associated with bruising.
2. Psychological injury
   a. Failure to sleep.
   b. Thinking deeply about many things.
   c. Feeling that he had problems in deciding what to do.
3. Mental Injury
   a. Poor insight and perception
   b. Depression"

Plaintiff had to purchase prescribed medication in the form of drugs and ointments, plus X-rays on his left hand. The total medical cost amounted to US$300.00. Plaintiff also lost income for two months and lost US$420.00. Accordingly, plaintiff claimed to have suffered damages in the amount of US$10 720.00 made up as follows;

i) US$300.00 for medical costs.
ii) US$5000.00 for pain and suffering.
iii) US$5000.00 for contumelia.
iv) US$420.00 for loss of income.

Plaintiff issued this summons due to defendant's refusal or failure and or neglect to pay the damages to the plaintiff.

Defendant entered an appearance to defend and subsequently filed its plea in the following terms;

1. The defendant denied that its officials assaulted the plaintiff as alleged or at all and puts plaintiff to strict proof thereof.

2. Defendant disputed that the persons who allegedly assaulted the plaintiff are its employees. But even if they were, defendant denied that they were acting within the course and scope of employment with the defendant. As a result, defendant denies that it is vicariously liable for the injuries allegedly suffered by the plaintiff.

3. Defendant disputes the quantum of damages claimed and puts plaintiff to strict proof thereof.

4. Defendant prayed for the dismissal of the plaintiff's claim with costs.

At a joint pre-trial conference in terms of r 49(13) of the High Court Rules 2021, the following issues were referred to trial;

1. Whether or not the plaintiff was assaulted by defendant's employees, and if so, whether or not the defendant is vicariously liable for the assault.

2. Whether or not the defendant is liable to pay damages and the quantum thereof.

3. The onus or burden of proof was put on the plaintiff.

EVIDENCE

Plaintiff gave *viva voce* evidence to the effect that;

a) He was assaulted and injured by municipal police acting in the course and scope of their employment with the defendant. He identified them by their uniform that they were wearing together with the municipal trucks that they move around in. Plaintiff also testified that he does not know the full and legal names of municipal police who attacked him and only knows them by their nicknames "Bhuru" and "Magaya." As a result, he could not issue summons against persons whose names he does not know with any degree of certainty.

According to the plaintiff, defendant is vicariously liable as the employer of municipal police who were acting in the course and scope of their employment to rid the Central Business District of Harare of vendors. Plaintiff also led evidence from Dr Harawa who treated the plaintiff and her medical affidavit was submitted into evidence. Plaintiff refuted the suggestion that he was assaulted by riot police who were patrolling in that area on that day. On this basis, plaintiff prayed for judgment as per the summons and declaration.

DEFENDANT'S EVIDENCE

The defendant led evidence through Mrs Tabani Shiripinda, a Chief Inspector in the municipal police department. She testified that no municipal police officers were deployed to that area on the alleged date and time. It was also denied that the defendant was involved in a joint operation with the Zimbabwe Republic Police at the relevant time. The witness was the one responsible for deployments at that time. Further she testified that due to political tensions at the time municipal police were not being deployed to the area where the plaintiff was allegedly

assaulted. It was her further testimony that plaintiff's failure to report the assault to the police at Harare Central prevented the police from investigating the crime.

The defendant closed its case after the testimony of this witness.

The Law and Analysis

As regards the 1st issue, I am of the view that the plaintiff failed to prove on a balance of probabilities that he was assaulted by municipal police. Plaintiff kept on changing his version of events, on 3rd October 2018 when the alleged assault was still fresh in his mind, he told the Doctor the following version;

> "On 3 October 2018; the client was selling his wares around QV Pharmacy and Karigamombe Centre. Uniformed Riot Policemen and ununiformed policemen from Harare City Council came in trucks. Three council policemen restrained him while one riot policeman used a baton stick and beat him on the buttocks."

This version was confirmed by the Doctor during cross-examination. This story was also confirmed by the plaintiff. I take the view that this story is consistent with the following proved facts;

a) The plaintiff was taken to Harare Central Police Station consistent with him having been arrested by members of the ZRP.

b) Plaintiff claimed to have identified the municipal police through their municipal uniform, yet in his version to the doctor he said he had observed riot policemen in uniform and municipal police were ununiformed.

c) It is common cause that there were political skirmishes around Harvest House at the relevant time. This is consistent with the presence of riot police who were obviously there to maintain peace and order arising from the skirmishes.

d) Plaintiff testified that he was able to identify some of the municipal officers who assaulted him because he knew them before. Notwithstanding this, plaintiff failed to report them for the police or take the police to their work place to point them out. Plaintiff could not explain if he knew them, he did not make enquiries to obtain their real names so that he could sue them with their employer for the alleged assault.

All in all, on a balance of probabilities plaintiff failed to establish that he was assaulted by defendant's employees. Therefore, plaintiff failed to prove that the defendant was vicariously liable for the assault. See *MILNER* v *MINISTER OF PENSIONS* 1947(2) AER 372 at p 374

MARITIME AND GENERAL INSURANCE CO. Ltd vs *SKY UNIT ENGINEERING (Pvt) Ltd* 1989(1) SA 867(T).

The standard test for vicarious liability is whether an employee was engaged in the affairs or business of the employer when the delict occurred. See *BITI* v *MINISTER OF STATE SECURITY* 1999(1) ZLR 65 (SC).

Where an employee commits the delict whilst pursuing his own interests the employer is not liable – See *DAVID S. GWANDE* v *TAPIWA MATONHODZE & ANOR* HH 123/12. The determining factor is the degree of deviation from the employer's business – see *PHILLIPS CENTRAL CELLARS (PVT) LTD* v *DIRECTOR OF CUSTOMS AND EXCISE* 2000(1) ZLR 353(HC).

In light of the above findings the plaintiff's claim for pain and suffering falls by the wayside.

THE CLAIM FOR *CONTUMELIA*

Plaintiff claimed an amount of US$5000.00 for *contumelia*. However, this claim was not substantiated in that no evidence in support of the claim was given by the plaintiff. In *casu*, plaintiff simply stated that he was assaulted in the "presence of many people." In my view, this is not enough to support a claim for *contumelia*. It is trite that for one to succeed in obtaining damages for *contumelia* he must show that the assault was perpetrated with the intention to cause embarrassment and humiliation. He must also show that the assault impaired his dignity – see *ROBINSON* v *FITZGERALD* 1980 ZLR 508, *EVERISTO MUNGATE* v *CITY OF HARARE* HH 328/16.

In the present matter, no such intention to embarrass, degrade and humiliate was proved. Consequently, the claim must fail.

THE CLAIM FOR MEDICAL EXPENSES

Plaintiff claimed medical expenses in the sum of US$10 720.00. According to the plaintiff, this is the amount he paid to obtain medical attention after the alleged assault. It is trite that he who alleges proves – *ASTRA INDUSTRIES LTD* v *PETER CHAMBURUKA* SC 27/12

In *casu*, plaintiff failed to substantiate the claim in that he did not produce any receipts showing that he paid the claimed amount. In the absence of proof of payment the claim must fail.

Special damages such as medical expenses must be strictly proved – see *MASIYIWA* v *COMMERCIAL UNION FIRE AND GENERAL INSTITUTE CO. LTD & ANOR* 1984(2) ZLR 181 (H) where it was held that:

> "It is an elementary proposition of law that a claim for special damages must not only be specially alleged and claimed, but must also be strictly proved."

In *EBRAHIM* v *PITTMAN* NO 1995 (1) ZLR 176(H) the court stated that;

> "It is not competent for a court to embark upon conjecture in assessing damages where there is no factual basis in evidence, or inadequate factual basis, for an assessment, and it is not competent to award an arbitrary approximation of damages to a plaintiff who has failed to produce available evidence upon which a proper assessment of loss could have been made."

In the present matter, besides the lack of evidence, the testimony of Dr Ruth Narawa virtually destroyed the plaintiff's claim in that she testified that the plaintiff was treated for free like all other alleged victims of such assaults. Clearly, plaintiff's claim for medical expenses incurred ends here. In the absence of evidence of proof that such medical expenses were paid the claim is dead and buried. The claim cannot succeed, it has collapsed.

Accordingly, it cannot be said that the plaintiff has been able to prove that he was assaulted by municipal police. His testimony thus falls short of the threshold to prove on a balance of probabilities that the defendant is liable. The change of plaintiff's versions of what happened tilts the balance of probabilities in favour of the deft. The probabilities weigh heavily against the plaintiff especially where the alleged municipal police officers remain unknown and have not been cited in the proceedings as the primary defendants.

In the circumstances the plaintiff's claim is hereby dismissed in its entirety with costs.

TAKUVA J: ……

Kadzere, Hungwe and Mandevere, Plaintiff's Legal Practitioners
Mbidzo, Muchadehama & Makoni, Defendant's Legal Practitioners